Department for
Business, Energy
& Industrial Strategy

HUG 2: Data Sharing Agreement

For local authorities in England

Between:

The Secretary of State for Business Energy & Industrial Strategy and

[insert the name(s) of Grant Recipient]

October 2022



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enquiries@beis.gov.uk

Contents

Introduction 6

Principle 1 - lawfulness, fairness, and transparency 8

Data items to be shared 8

How data will be shared 10

Legal Gateways 11

Data Controller relationship 11

Transparency 11

Principle 2 - purpose limitation 12

Onward disclosure 13

Principle 3 - data minimisation 14

Principle 4 - accuracy 14

Principle 5 - storage limitation 15

Principle 6 - integrity and confidentiality 15

Principle 7 – accountability 17

Rights of data subjects 18

Governance and administration 20

Offshoring 20

Consultation 20

Automated decision-making and profiling 21

Necessity and proportionality 21

Freedom of Information Requests 21

Personal data breaches 21

Dispute Resolution 22

Review 22

Termination 22

Appendix A – Summary of Processing 25

Appendix B – Key contact details 27

Appendix C - CBAS default data handling 28

Glossary of key terms

In this Agreement the following words and phrases will have the following meanings:

Phrase	Meaning
“Grant Recipient	[insert name(s) of Grant Recipient]
“The Authority”	means BEIS and any BEIS Delivery Agent, BEIS Delivery Partner or other contractor or organisation appointed by BEIS to act on its behalf in connection with HUG 2
“BEIS”	The Secretary of State for Business, Energy & Industrial Strategy
“Partners”	Partners to this Agreement, namely BEIS and the Grant Recipient
“DPA”	Data Protection Act 2018
“DSA”	Data Sharing Agreement
“FoIA”	Freedom of Information Act 2000
“HUG 2”	Home Upgrade Grant Phase 2
“UK GDPR”	UK version of Regulation (EU) 2016/679 – the General Data Protection Regulation
“Controller”	as referred to in UK GDPR
“Processor”	as referred to in UK GDPR
“Data Subject”	as referred to in UK GDPR
“Processing”	as referred to in UK GDPR
“Personal Data”	as referred to in UK GDPR

“Special Category Data”	personal data as referred to in Article 9(1) of the UK GDPR
“MoU”	Memorandum of Understanding between BEIS and the Grant Recipient to record their understanding regarding the Grant funding
BEIS Delivery Agent	has the meaning given in the MoU
BEIS Delivery Partner	has the meaning given in the MoU
“Grant”	has the meaning given in the MoU
“Eligible Measures”	has the meaning given in the MoU
“Eligible Household”	has the meaning given in the MoU
“Eligible Installer”	has the meaning given in the MoU
“Proposal”	has the meaning given to it in the MoU
“HUG 2 Performance Monitoring Data”	has the meaning given to it in paragraph 6 of this DSA
“HUG 2 Scheme Delivery Data”	has the meaning given to it in paragraph 7 of this DSA
“HUG 2 Fraud and Non-Compliance data”	has the meaning given to it in paragraph 8of this DSA.
“HUG 2 Funding Duplication Data”	has the meaning given to it in paragraph 9 of this DSA
“Funding Period”	has the meaning given to it in the MoU

Introduction

1. This Data Sharing Agreement (DSA) sets out the data sharing arrangements between the Partners in relation to HUG 2. It covers personal data being shared by the Grant Recipient with the Authority and personal data shared by the Authority with the Grant Recipient.

2. HUG 2 is supported by grant funding to the Grant Recipient from the Authority in accordance with the MoU.

3. **HUG 2 has two key aims:**

- To deliver progress towards the fuel poverty target to improve as many D, E, F or G rated fuel poor homes as reasonably practicable to a minimum energy efficiency rating of C by the end of 2030, and an interim milestone of D by 2025.
- To deliver progress towards the UK's statutory target for net zero by 2050 and enable the delivery of the wider policy package to phase out high-carbon heating for homes off the mains gas grid this decade by growing supply chains and ensuring such policies do not act to the detriment of fuel poor households.

4. The Grant Recipient has committed to spend the Grant to deliver Eligible Measures to Eligible Households, using Eligible Installers.

5. Under **paragraph 190** of the MoU, as far as it is possible to do so in accordance with the DPA and UK GDPR, the Grant Recipient has agreed to collect information for evaluation and reporting purposes (referred to below as "the Information") in a way which:

- Allows it to share the Information with the Authority.
- Allows the Authority to share the Information with any of its research or evaluation partners;
- Allows the Authority to use the Information for research and statistical purposes (this does not include publishing the Information in a way that identifies individual households) provided always that the Authority complies with the provisions of the Data Protection Act 2018 and UK GDPR; and
- Allows the Authority to use the Information for official communications and audit activities.

6. Under **paragraph 113** of the MoU, the Grant Recipient will provide a monthly report to the Authority. The KPI data will cover activity from the first day of the month to the last and will need to be provided on or before the 10th working day of the following month. The Monthly Report shall detail monthly progress against KPIs stipulated in the Proposal, the top 5 risks and issues and any incidents of fraud, and an overall delivery confidence rating. There is also space to highlight any items the Grant Recipient wishes to escalate for attention by the Authority. The Grant Recipient will report to the Authority on the performance of the project(s) set out in their Proposal, in line with the stated KPIs

using a Monthly Report online reporting platform. This data is referred to as the “HUG 2 performance monitoring data” in this DSA to differentiate it from the personal data that will be shared. **Paragraphs 15 to 19** of this DSA define each dataset covered by this DSA.

7. Under **paragraph 113** of the MoU (see **Annex 7** for the data requirements under the MoU or the draft template available on gov.uk) and as set out in the monitoring and evaluation section of the HUG 2 guidance document, the Grant Recipient is required to provide additional detailed information monthly to support a detailed evaluation of the overall scheme. This is expected to include personal data. This data is referred to as “HUG 2 scheme delivery data” in this DSA. Further details of the personal data to be shared are set out in **Annex 9** of the MoU.

8. In addition to the HUG 2 scheme delivery data, it may be necessary for the Grant Recipient to share data relating to any suspected fraudulent activity with the Authority on an ad-hoc basis, as stipulated in **paragraphs 116-118** of the MoU, as well as within the monthly HUG 2 scheme delivery data. This is also expected to include personal data. This data is referred to as “HUG 2 Fraud and Non-Compliance data” in this DSA.

9. Under **paragraph 53** of the MoU, funding Grant Recipients receive from HUG 2 cannot be blended with other government schemes such as ECO, HUG 1, or the Social Housing Decarbonisation Fund, for the same individual measure. The Authority may undertake data matching between the data shared by the Grant Recipient and other datasets to check that relevant blending or duplication of funding has not taken place. Where a potential case of such blending or duplication of funding is identified, the Authority may notify the Grant Recipient. Such notification would be expected to involve the sharing of personal data. This data is referred to as “HUG 2 funding duplication data” in this DSA.

10. This DSA documents the lawful basis for this data sharing initiative, what information will be shared and how. The Partners have entered into this DSA to demonstrate that data protection and privacy requirements have been taken into account, to set out how use of information meets the data protection principles, and how the rights of data subjects are protected. All the obligations in this DSA are subject to compliance with the law (including the DPA and UK GDPR).

11. This DSA is not intended to be legally binding, and no legal obligations or legal rights shall arise between the Partners from this DSA. Nothing in this DSA is intended to, or shall be deemed to, establish any partnership, joint venture, or relationship of employment between the Partners, constitute either Partner as the agent of the other Partner, nor authorise either of the Partners to make or enter any commitments for or on behalf of the other Partner. This DSA does not create a legal power for either Partner to lawfully exchange and process personal information, and it does not provide indemnity from action under any law. It does not remove or reduce the legal obligations or responsibilities on any Partner. The Partners enter this DSA intending to honour its provisions.

12. This DSA will commence when it has been signed by or on behalf of both Partners and will terminate one year after the end of the Funding Period or, if later, one year after receipt by the Authority of the final transfer of the HUG 2 scheme delivery data in accordance with **paragraph 43** of this DSA.

Principle 1 - lawfulness, fairness, and transparency

13. The sharing of the personal data, as described above, is necessary for the Authority to review the operation of HUG 2 and effectively assess whether HUG 2 has met the objectives set out in **paragraph 3** of this DSA as well as for statistical, policy research and fraud prevention purposes. For this, the Authority requires details of the measures installed under HUG 2 as well as the consumers, installers and properties involved in those installations. Principle 2 - purpose limitation further below sets out the detailed purposes for which processing of data under this DSA are needed.

Data items to be shared

14. The Grant Recipient has agreed to provide the Authority with data, as described below:

15. **HUG 2 performance monitoring data**. As set out in the MoU and referred to in **paragraph 6** above, the Grant Recipient will provide a monthly update of aggregate data to allow monitoring of scheme progress against agreed targets. This summary aggregate data is not expected to include personal data and as such the controls and procedures specified in this agreement do not apply. The HUG 2 performance monitoring data is only defined here to ensure understanding of the other data types is clear.

16. **HUG 2 scheme delivery data.** As set out in the MoU and supplementary guidance (and referred to in **paragraph 7** above), the Grant Recipient is required to provide detailed data covering their delivery of HUG 2. This data is expected to include personal data. **Annex 7** in the MoU sets out the draft HUG 2 Data Dictionary. In summary the types of data to be shared are:

- the addresses and corresponding details of properties applying, or being referred, for installation of a measure.
- contact details for the occupants and owners (if different) of the property where the installation took place, as well as details about how and why they were identified by the Grant Recipient for participation in HUG 2 and details about any financial contributions they have made towards the cost of the installation.
- details of the energy efficiency measures or low carbon heating system installed, including type, size and cost.
- details of any additional funding used to support the installations, for example from the owners, landlords or other third parties.
- pre- and post-installation property SAP or RdSAP assessments with scores.

- details of the installers in relation to each installation of a HUG 2 measure, including their contact details and any relevant accreditation or registration information; and
- contact details for households offered an installation but who do not accept.

17. **HUG 2 Fraud and Non-Compliance data**. As set out in the MoU and referred to in **paragraph 8** above, data relating to suspected fraudulent activity is expected to be shared by the Grant Recipient with the Authority on a monthly basis. The Authority may also request further data where the Grant Recipient requires support or assistance from the Authority in addressing issues of fraud or non-compliance. The format of the HUG 2 Fraud and Non-Compliance data is prescribed in the Monthly Reporting Template and in the data dictionary of this MoU.

18. In addition to personal data, the HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data shared by the Grant Recipient with the Authority is expected to include data which may be considered commercially sensitive to the Grant Recipient's installers and sub-contractors. Below are the data sets of commercially sensitive information which are expected to be shared on a regular basis by the Grant Recipient with the Authority:

- how much installers charge them to deliver the HUG 2 installations.
- how much it costs them to administer HUG 2; and
- how much property owners or other third parties have contributed to the cost of the installations (note that this could be personal data as well).

19. **HUG 2 funding duplication data**. As referred to in **paragraph 9** above, the Authority may match the HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data with other datasets to check that ineligible blending or duplication of funding has not taken place. Where a potential case of ineligible blending or duplication of funding is identified, the Authority may notify the Grant Recipient and share data with the Grant Recipient relating to the suspected duplication or blending of funding that has been identified. Such notifications would be on an ad-hoc basis as required and would be expected to include personal data collected under other government schemes. The Grant Recipient will only use the HUG 2 funding duplication data for the purposes of fraud prevention and supporting the administration of HUG 2. The data shared is expected to include (but is not limited to):

- The address of the relevant property
- The relevant measure
- The date of installation
- The name of the government scheme under which the installation was funded.

How data will be shared

20. The Grant Recipient will share the HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data with the BEIS Energy Statistics team (or with such other team within the Authority as is notified to the Grant Recipient by the Authority in writing). The HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data will be shared in a password-protected report, for example using Egress, a Secure FTP or platform, restricted folders on SharePoint or another method which has been approved by the BEIS Departmental Security Officer as being suitable for the transfer of personal data.

21. Once the Grant Recipient has provided the HUG 2 scheme delivery data and the HUG 2 Fraud and Non-Compliance data to the Authority, the Authority may in turn share this data with other third parties, including other Government Departments and its contractors. These arrangements are detailed further below in relation to purpose limitation.

22. In line with **paragraph 7** of this DSA, the HUG 2 scheme delivery data will be shared by the Grant Recipient monthly for the duration of the Funding Period or, if later, until the Grant Recipient has shared with the Authority the HUG 2 scheme delivery data in relation to each installation the Grant Recipient has delivered under HUG 2. In line with the HUG 2 guidance documents, the Grant Recipient will share HUG 2 scheme delivery data relating to an installation no later than the 10th working day of the month following the installation.

23. HUG 2 Fraud and Non-Compliance data will be shared by the Grant Recipient with the Authority on an ad-hoc basis as and when issues of fraud and non-compliance are identified and within the monthly scheme delivery data.

24. The Authority will share the HUG 2 funding duplication data with the Grant Recipient in a password-protected report, for example using Egress, a Secure FTP, restricted folders on SharePoint or another method which has been approved by the BEIS Departmental Security Officer as being suitable for the transfer of personal data.

25. The Authority and the Grant Recipient will store all personal data received under this DSA in restricted access folders held on a restricted access secure server. Further information about the safekeeping of the data is set out further below under Principle 6 - integrity and confidentiality.

26. Where the Authority shares the HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data with third parties (including other government departments) as specified in **paragraphs 36 to 38** of this DSA, the data will be shared in a password-protected report, for example using Egress, a Secure FTP, restricted folders on SharePoint or another method which has been approved by the BEIS Departmental Security Officer as being suitable for the transfer of personal data.

Legal Gateways

27. The lawful basis for the Authority and Grant Recipient sharing the personal data covered by this DSA and for the Authority and Grant Recipient processing the data in the way described in this DSA is that it is necessary for the performance of a task carried out in the public interest (Article 6(1)(e) of the UK GDPR). Specifically, this data sharing, and processing is required for:

- [Applicant to add any specific Applicant functions that are supported by HUG 2 data sharing.]
- the Authority to carry out its functions in relation to fuel poverty and carbon reductions under the Warm Homes and Energy Conservation Act 2000, the Climate Change Act 2008, the Fuel Poverty (England) Regulations 2014 and in relation to the fiduciary duty to ensure public money is used responsibly and to prevent fraud; and
- each Partner to carry out their functions as regards effectively managing the spending of public funding, including the Authority being able to review how and where the HUG 2 funding is spent, including decisions as to whether further tranches of funding should be provided or released to the Grant Recipient as well as assessing whether the funding has achieved its objectives.

The full list of purposes for which processing of data under this DSA is needed are set out under Principle 2 – Purpose Limitations below.

Data Controller relationship

28. BEIS is an independent controller for the personal data the Authority shares with the Grant Recipient under this DSA. Except to the extent the Grant Recipient informs the Authority otherwise in writing prior to the data share, the Grant Recipient is an independent controller for the personal data it shares with the Authority under this DSA. BEIS becomes an independent controller on receipt of any personal data shared with the Authority by the Grant Recipient under this DSA. The Grant Recipient becomes an independent controller on receipt of any personal data shared with it by the Authority under this DSA.

Transparency

29. The Grant Recipient accepts responsibility for not only providing privacy information to all installers, whether their own or sub-contracted, but also for ensuring that all installers provide privacy information to households and landlords to whom a measure is promoted in compliance with the DPA and the UK GDPR. In addition, the Grant Recipient will ensure that the privacy information includes content which alerts the data subject to the fact that their personal data will be passed from the installer to the Grant Recipient, and then from the Grant Recipient to the Authority. The privacy information will state that, in addition to the data being used for management and delivery of the scheme, the Authority may also use some of the data for evaluation, auditing, research, statistical and fraud prevention purposes. The privacy information will also indicate that

the data may also be linked to other data sources held by the Authority and other Government departments, and shared with Ofgem, BEIS contractors and other third parties, for these purposes. The Authority has provided a privacy notice (see **Annex 5** of the MoU) for this purpose which the Grant Recipient has responsibility for ensuring is shared with data subjects.

30. As part of the Authority's and the Grant Recipient's ongoing UK GDPR compliance, their respective privacy notices are regularly updated as required to ensure that the data subject's rights are complied with. The Authority may update the privacy notice provided in **Annex 5** of the MoU by reasonable notice in writing to the Grant Recipient.

Principle 2 - purpose limitation

31. The Grant Recipient will, as necessary, disclose personal data to the Authority. The primary purposes for sharing and processing the data covered by this DSA are to:

- support the administration of HUG 2,
- support an assessment of whether HUG 2 has achieved its objectives,
- support BEIS to effectively publish statistical reports relating to HUG 2,
- support an evaluation of HUG 2 and associated home energy policies, and
- support effective management of fraud and non-compliance under HUG 2.

32. As set out in the HUG 2 guidance documents, HUG 2 cannot be blended with other government schemes such as the Energy Company Obligation (ECO), Boiler Upgrade Scheme (BUS), Local Authority Delivery (LAD), HUG 1 or the Social Housing Decarbonisation Fund for the same individual measure. The Authority may therefore use the HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data to identify where installations may be receiving funding under more than one Government scheme. This will entail the Authority carrying out data matching of addresses to look for potential duplication. This may entail the Authority sharing data with delivery partners for those other schemes, for example Ofgem who administer ECO, BUS, and the Renewable Heat Incentive. In future this may involve delivery partners of other schemes. Details of the onwards sharing of data are set out in **paragraphs 35 to 38.** Where relevant blending of or duplication of funding is identified, the Authority may share personal data with the Grant Recipient in the form of the HUG 2 funding duplication data to enable the Grant Recipient to effectively manage their delivery and for fraud prevention.

33. In addition, the Authority may use some of the data shared by the Grant Recipient to review and develop Government policy, and for research, evaluation and statistical purposes and may, for these purposes, link the data with other data sources held by the Authority and other Government departments. Evaluation activities may include the Authority contacting householders, landlords and/or installers to invite them to take part in surveys or other evaluation of HUG 2. The following are further examples of analysis and research that are expected to be undertaken:

- analysing whether the presence of HUG 2 installations leads to a significant change in energy consumption by matching HUG 2 measures data to the National Energy Efficiency Database, and Cavity Insulation Guarantee Agency or other related similar operational databases.
- linking the HUG 2 scheme delivery data to other record level data from other centrally administered energy efficiency programmes (within an address spine), enabling the Authority to assess the following without double counting properties:
    - progress against fuel poverty targets.
    - insulation levels for the overall housing stock in Great Britain, and impact on remaining potential for cavity wall, solid wall, and loft insulation.
    - the characteristics of recipients (e.g., location, property type, tenure, vulnerability group) to inform future policy making.
    - interaction between HUG 2 and the Energy Efficiency (Private Rented Property) (England and Wales) Regulations 2015.
- address matching HUG 2 installations through the National Energy Efficiency Data-Framework to maintain a central database of property characteristics, household characteristics, energy consumption and EPCs (Energy Performance Certificate).

34. This is not an exhaustive list of purposes for which the data might be used. For example, HUG 2 scheme delivery data may be used to answer a few internal (to BEIS) ad-hoc requests and this DSA does not cover the use of data for other external purposes.

Onward disclosure

35. To effectively audit and manage HUG 2 and other Government schemes, the Authority may need to share the HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data with delivery partners of current or future energy efficiency or low carbon heating government support schemes. Where this data sharing is necessary the Authority will put a data sharing agreement in place with the relevant third parties to support sharing of the data.

36. The Authority may share HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data with a BEIS Delivery Agent, BEIS Delivery Partner or with other BEIS contractors or organisations appointed by BEIS to act on behalf of BEIS in connection with HUG 2. The purpose of the data sharing would be to support the administration, management, delivery, evaluation and/or auditing of HUG 2, and/or for statistical, research and fraud prevention purposes. This would be subject to review and approval of the contractor or organisation by the BEIS Information Asset Owner. BEIS would be the controller for the personal data and the contractor or organisation would be its processor. The Grant Recipient may share the personal data with its contractors subject to review and approval of the contractor by the Grant Recipient's Information Asset Owner. In this scenario, the Grant Recipient would be the controller for the personal data and the contractor would be the processor.

37. The Authority may need to share HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data with other Government departments where it is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the department (Article 6(1)(e) of the GDPR). A data sharing agreement would be put in place for this purpose.

38. The exact data items that will be included within the onward disclosures listed above cannot be confirmed at this stage. The Authority will comply with the 'data minimisation' principle set out in UK GDPR Article 5(1)(c) and ensure that the onward disclosure of data is restricted to only that data required by the third party to support the purpose for which the data is shared.

Principle 3 - data minimisation

39. Each Partner confirms that the information being shared under this DSA is the minimum amount of personal data that is necessary to achieve the purposes for which it is being shared.

Principle 4 - accuracy

40. In line with the monitoring and evaluation section of the HUG 2 guidance documents, the Grant Recipient will carry out a series of checks on the accuracy of HUG 2 scheme delivery data, and the HUG 2 Fraud and Non-Compliance data before is it shared with the Authority. These checks include:

- checking the eligibility of the households and installers.
- checking for data completeness; and
- carrying out data validation checks.

41. The Authority will also conduct checks of the HUG 2 scheme delivery data it receives from the Grant Recipient to identify reporting errors, double counting or ineligible households or installers.

42. If, after personal data has been passed from the Grant Recipient to the Authority, or from the Authority to the Grant Recipient, either the Authority or the Grant Recipient identifies an error in that information then they will notify each other within five working days of identifying the error.

- For the HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data, the Grant Recipient will then:

a. take reasonable steps (including liaising with the relevant installer) to clarify and correct the data, and
b. promptly notify the Authority of any correction to the data.

For HUG 2 funding duplication data, the Authority will then: (a) take reasonable steps (including liaising with any relevant delivery partners) to clarify and correct the data; and (b) promptly notify the Grant Recipient of any correction to the data.

Principle 5 - storage limitation

43. The Authority will retain the HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data for up to 25 years after the end of the Funding Period for the purposes noted above. In line with the storage limitation principle (UK GDPR Article 5(1)(e)) the Authority will review the HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data it holds at the end of the Funding Period and at regular periods thereafter to ensure that data is only retained for as long as it is needed up to the full 25 years.

44. The Grant Recipient will retain the HUG 2 scheme delivery, HUG 2 Fraud and Non-Compliance data and HUG 2 funding duplication data in accordance with its retention and disposal policy.

45. Partners will destroy or delete all personal data at the end of the retention periods using a process that is in line with their existing data destruction processes.

46. The use of anonymised or pseudonymised data will be considered as the primary form of data sharing with parties outside of the Authority. Only where the required purpose cannot be achieved using anonymised or pseudonymised data will identifiable personal data be shared.

47. To achieve the purposes, set out in Principle 2 (purpose limitation) above, identifiable personal data, rather than anonymised or pseudonymised data, is required to be processed by the designated teams within the Authority referred to in paragraph 50 of this DSA. As set out in paragraph 52 of this DSA, non-designated teams within the Authority will only have access to anonymised data.

Principle 6 - integrity and confidentiality

48. The following information security measures will be put in place by the Authority and the Grant Recipient to ensure the safekeeping of the data shared with it as covered by this DSA, including, and with reference to, the personal data. The Partners agree to work and comply with their respective information assurance and data protection policies.

49. The Authority will hold the HUG 2 scheme delivery data on the Cloud Based Analytical System (CBAS), The Authority's IT (Information Technology) system for analytical software and data storage. Information on CBAS will be classified as OFFICIAL-SENSITIVE-PERSONAL and will be restricted to named individuals. Access requires provision of a username, password and one-time passcode issued to the user's mobile device. All CBAS servers comply with ISO 9001, ISO 14001, and ISO 27001. Further information regarding CBAS default data handling can be found in **Appendix C** of this DSA. The Authority will hold the HUG 2 Fraud and Non-Compliance data in a secure

SharePoint folder with access controls limiting access to those on the HUG 2 data access list. For reference, the HUG 2 performance monitoring data will be held in an unrestricted SharePoint folder.

50. Only designated teams within the Authority and nominated third parties will be able to access the HUG 2 scheme delivery data and the HUG 2 Fraud and Non-Compliance data containing the personal data. The Authority acknowledges and agrees that:

- the designated teams within the Authority will be named in an internally held HUG 2 data access list and kept to a reasonable minimum.
- it will maintain the HUG 2 data access list and share it with the Grant Recipient as required on request.
- The Authority will require that the mandatory annual “Responsible for Information” eLearning, or equivalent, will be completed by all persons within those teams granted access.

51. Only designated teams within the Grant Recipient and nominated third parties will be able to access the HUG 2 funding duplication data. The Grant Recipient acknowledges and agrees that:

- the designated teams will be named in an internally held HUG 2 funding duplication data access list and kept to a reasonable minimum.
- it will maintain the HUG 2 funding duplication data access list and share it with the Authority as required on request.
- the Grant Recipient will require that appropriate information handling training will be completed by all persons within those teams granted access.

52. Non-designated teams within the Authority may also use an anonymised version of the HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data, that excludes address and any record-level identifiers, for internal analysis only. The Authority will only publish aggregate results that meet the requirements of Principle T6.4 of the Code of Practice for Official Statistics on confidentiality. The underlying data will not be published by the Authority, however, to comply with the Government Social Research Publication Protocol, the Authority may publish datasets resulting from HUG 2 participant surveys. The publication of this data may require inclusion of data extracted from the HUG 2 scheme delivery data, however, publication in this instance would only be conducted where the data could be fully anonymised and complies with Principle T6.4 of the Code of Practice for Official Statistics on confidentiality.

53. Shaun Garvey, the Project Director for HUG 2 (or successor) has been appointed as the BEIS Information Asset Owner of the HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data and, as such, is responsible for the security of the HUG 2 scheme delivery data and HUG 2 Fraud and Non-Compliance data provided by the Grant Recipient.

54. <The Grant Recipient to insert Information asset name and role> (or successor) has been appointed as the Grant Recipient's Information Asset Owner of the HUG 2 funding duplication data and, as such, is responsible for the security of the personal data provided by the Authority under this DSA.

55. All Partners confirm that, as a minimum, they have considered the risks of the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to any personal data processed under this DSA and have arrangements in place to manage or mitigate these risks.

Principle 7 – accountability

56. All Partners confirm that they can demonstrate compliance with the data protection principles.

57. BEIS confirms that the processing of the HUG 2 scheme delivery data, the HUG 2 Fraud and Non-Compliance data and HUG 2 funding duplication data covered in this DSA will be added to the BEIS's existing central record of processing.

58. The Grant Recipient confirms that the processing of the HUG 2 scheme delivery data, the HUG 2 Fraud and Non-Compliance data and HUG 2 funding duplication data covered in this DSA [will be included in the Grant Recipient's existing central record of processing / does not need to be included in the Grant Recipient's existing central record of processing because [Grant Recipient TO INPUT]].

Rights of data subjects

The rights of data subjects are set out in the table below:

Write to:	Applies?	If yes, are any additional actions required. If no, why this right does not apply.
Transparent information (GDPR Article 12)	Y	The Grant Recipient takes responsibility for ensuring that appropriate fair processing and privacy notices are provided to data subjects.
Information when data collected from data subject (GDPR Article 13)	Y	The Grant Recipient takes responsibility for ensuring that appropriate fair processing and privacy notices are provided to data subjects.
Information when data collected from elsewhere (GDPR Article 14)	Y	The Grant Recipient takes responsibility for ensuring that appropriate fair processing and privacy notices are provided to data subjects, either by itself or by the installers working on its behalf.
Access by data subject (GDPR Article 15)	Y	Where either Partner receives a data access request from a data subject, this will be actioned in line with the relevant Partner's existing policies for handling such requests.
Rectification (GDPR Article 16)	Y	Where a Partner receives a rectification request from a data subject, this will be communicated to the other Partner within 5 working days. Where this request results in concluding there is an error in the original data, this will be notified to the other Partner within 5 working days.
Erasure (GDPR Article 17)	Y	Where a Partner receives an erasure request from a data subject, this will be communicated to the other Partner within 5 working days. The eligibility of each erasure request will be reviewed by each

		Partner in line with article 17 of the UK GDPR and a decision made regarding the nature of the processing undertaken by that Partner.
Restriction of processing (GDPR Article 18)	Y	Data subjects have the right in certain circumstances (for example, where accuracy is contested) to request that the processing of their personal data is restricted. Where a Partner receives a restriction of processing request from a data subject, this will be communicated to the other Partner within 5 working days.
Notification regarding rectification, erasure, or restriction (GDPR Article 19)	Y	The Authority will notify any parties with whom it has shared the data within 5 working days of an action being taken under a request for rectification, erasure, or restriction, unless this proves impossible or involves disproportionate effort.
Data portability (GDPR Article 20)	N	The personal data processed by the Authority under this DSA is not directly provided by the data subject to the Authority and is not processed by the Authority on the basis of consent or for the performance of a contract.
Object to processing (GDPR Article 21)	Y	Data subjects may object to the processing of their data, but the request may be refused if it would prevent the administration and auditing of the scheme and use of the data for fraud prevention and/or statistical purposes. Data subjects will be notified of their right to object via the fair processing and privacy notices mentioned above in relation to articles 12, 13 and 14 of the UK GDPR and for which the Grant Recipient takes responsibility. Where a Partner receives an Object to Processing request from a data subject,

		this will be communicated to the other Partner within 5 working days.
Automated decision-making and profiling (GDPR Article 22)	N	It is not expected that automated decision-making or profiling will be required under this DSA.

Governance and administration

Data Protection Impact Assessments

59. The Authority is completing a Data Protection Impact Assessment (DPIA) for the processing that it will undertake in relation to this DSA. The DPIA considers the Authority's processing activities including analysis and publication of data for statistical reasons and sharing of data with its contractors and with delivery partners of relevant schemes. The DPIA is available on request.

60. [State here whether the Grant Recipient has completed a DPIA and, if so, whether it covers this data share and whether it has been or will be published. If no DPIA has been completed, explain why this was not necessary.]

Offshoring

61. Personal data shared with the Authority will be stored on its IT infrastructure and may therefore also be shared with its data processors Microsoft and Amazon Web Services. The data may therefore be transferred and stored securely outside the UK and European Economic Area. Where that is the case, it will be subject to equivalent legal protection using Model Contract Clauses.

Consultation

62. The Authority consults with the BEIS Data Protection Officer in the process of completing its DPIA. Data subjects will not be consulted before the processing covered by this DSA commences; however, data subjects will be notified of the data processing as **per paragraph 29.**

63. State here whether the Grant Recipient has consulted with their Data Protection Officer, or otherwise (for example through the DPIA process) obtained specialist data protection advice. Also state whether data subjects or their representatives have been or will be consulted before the processing covered by this Agreement commences.

Automated decision-making and profiling

64. It is not expected that automated decision-making or profiling will be undertaken by the Authority with the HUG 2 scheme delivery data or HUG 2 Fraud and Non-Compliance data, or by the Grant Recipient with the HUG 2 funding duplication data.

Necessity and proportionality

65. The Authority is completing a DPIA regarding the processing covered by this DSA, including a consideration of necessity and proportionality. The proposed processing is deemed as necessary and proportionate.

Freedom of Information Requests

66. Partners subject to the requirements of FoIA and the Environmental Information Regulations 2006, will assist and cooperate with each other, to enable each to comply with its information disclosure obligations.

67. Where a request for information under FoIA or the Environmental Information Regulations 2006 is received by a Partner to this DSA, which relates to data that has been provided by another Partner under this DSA, the Partner receiving the request will take reasonable steps, where appropriate, to give the other Partner advance notice to allow it the opportunity to make representations on the potential impact of disclosure, or failing that, to draw the disclosure to the other Partner's attention after any such disclosure.

68. Each Partner shall be responsible for determining in its absolute discretion whether any information is exempt from disclosure in accordance with the provisions of the FoIA or the Environmental Information Regulations 2006.

Personal data breaches

69. The Partners will follow their own internal processes on the discovery of a personal data breach and advise their own security teams.

70. In addition, each Partner will notify the other Partner of any personal data breach that relates to this data share, via direct contact with the project leads named in **Appendix B** of this DSA within 72 hours of discovering the personal data breach.

71. In the event of a personal data breach (or where there is reasonable cause to believe that such an incident may arise), the Partners will delay data transfers until the cause or incident is resolved, as authorised by the Authority's Information Asset Owner and the Grant Recipient's equivalent. If the breach cannot be resolved or if - in the view of the Partners – it is very serious, data transfers will stop and will not resume until the Authority Informational Asset Owner and the Grant Recipient's equivalent are satisfied with the security arrangements.

72. Any Partner who decides that a personal data breach that affects, or is relevant to, the processing under this DSA must be self-reported to the ICO shall ensure that the other Partner is notified of this.

Dispute Resolution

73. Disputes between the Partners regarding the operation of this DSA will be resolved in the following way:

- In the first instance a material breach will be reported between the project leads on each side, named in **Appendix B** of this DSA. An assessment by the breaching party will be conducted promptly to identify if the breach is ongoing or was a one-off, and the potential impact of the breach.
- All material breaches will be notified to the Data Protection Officers in the Authority and the Grant Recipient. The outcomes of the assessment conducted by the project leads on each side, named in **Appendix B** of this DSA, will be discussed and actions identified.

Review

74. Scheduled formal reviews of this DSA are not expected to take place to assess the ongoing effectiveness of this data sharing initiative and this DSA. This DSA will only be reviewed if the purpose of the processing changes, or the processing otherwise changes in a way that affects the rights of data subjects.

Termination

75. Any Partner can terminate this DSA, without giving a reason, on expiry of one (1) month's written notice to the others. Notice of termination would also trigger a formal review of the HUG 2 grant funding provided to the Grant Recipient.

76. Any Partner can terminate this DSA with immediate effect, where another Partner materially breaches any of its obligations to this DSA.

77. Termination notices should be addressed to the Information Asset Owners at the Authority and the Grant Recipient.

78. In the event of termination, data will cease to be shared under the terms of this DSA.

Signatories

Signed for and on behalf of BEIS. **Signature:**
Name: Shaun Garvey Position: Deputy Director, Net Zero Buildings, Domestic, Department for Business, Energy & Industrial Strategy
Full contact details: <insert email address > @beis.gov.uk <insert appropriate phone number> 1 Victoria Street, London, SW1H 0ET
Date:

Signed for [insert name of partner organisation] **Signed by:** [should be Senior Responsible Owner or equivalent]
Name: [insert name and position in organisation. This should be a senior person with adequate authority to be fully accountable.]

Full contact details: Address: Email address: Telephone Number:
Date:

Appendices

Appendix A – Summary of Processing

Appendix B – Contact details for key members of staff from Partner organisations

Appendix C – CBAS Default Data Handline

Appendix A – Summary of Processing

Description	Details
Subject matter of the processing	The processing relates to the delivery of HUG 2.
Duration of the processing	Processing will commence on and from the date on which this DSA is signed by, or on behalf of, both Partners. Personal data will be retained only for as long as it is needed and, in any case, up to a maximum of 25 years after the end of the Funding Period.
Nature and purposes of the processing	The Grant Recipient will share with the Authority personal data relating to delivery of HUG 2. The Authority will process the data, including matching it with other datasets and onward sharing with other parties, to effectively manage and review the use of public funds and to support further research, evaluation, and statistical reporting. If relevant blending or duplication of funding is identified, the Authority may share personal data with the Grant Recipient so it can effectively manage delivery of HUG 2 and for fraud prevention purposes.
Type of Personal Data that will be processed	It is expected that the types of personal data processed will include (but not limited to): Name, address, phone, email of the property owner Details of the property and installation undertaken Details and contact information of the installer
Types of Special Category data	Special Category data is not expected to be shared.

High risk processing	It is not expected that the processing is likely to result in a high risk to the rights and freedoms of individuals.
Law enforcement	N/A
Criminal convictions data	N/A
Categories of Data Subject	Households and owners of properties offered home energy upgrades under HUG 2 Installers of home energy upgrades under HUG 2 Third parties providing additional funding for home energy upgrades under HUG 2.

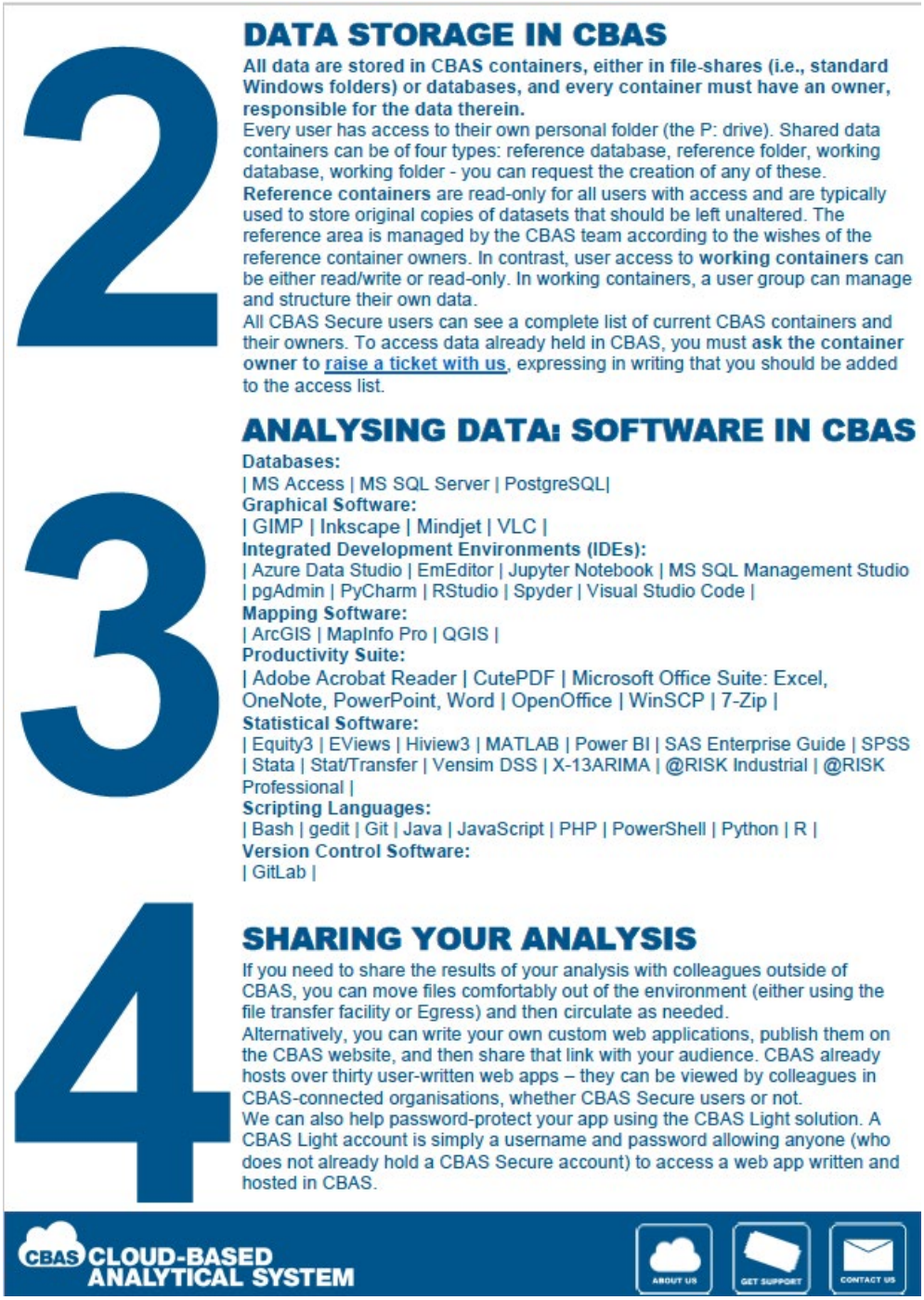
Appendix B – Key contact details

BEIS HUG central email inbox	hug.project@beis.gov.uk

Each Partner may update their contact details in this appendix at any time by reasonable notice in writing to the other Partners.

Appendix C - CBAS default data handling





2

DATA STORAGE IN CBAS

All data are stored in CBAS containers, either in file-shares (i.e., standard Windows folders) or databases, and every container must have an owner, responsible for the data therein.

Every user has access to their own personal folder (the P: drive). Shared data containers can be of four types: reference database, reference folder, working database, working folder - you can request the creation of any of these.

Reference containers are read-only for all users with access and are typically used to store original copies of datasets that should be left unaltered. The reference area is managed by the CBAS team according to the wishes of the reference container owners. In contrast, user access to **working containers** can be either read/write or read-only. In working containers, a user group can manage and structure their own data.

All CBAS Secure users can see a complete list of current CBAS containers and their owners. To access data already held in CBAS, you must **ask the container owner to raise a ticket with us**, expressing in writing that you should be added to the access list.

3

ANALYSING DATA: SOFTWARE IN CBAS

Databases:
| MS Access | MS SQL Server | PostgreSQL|
Graphical Software:
| GIMP | Inkscape | Mindjet | VLC |
Integrated Development Environments (IDEs):
| Azure Data Studio | EmEditor | Jupyter Notebook | MS SQL Management Studio | pgAdmin | PyCharm | RStudio | Spyder | Visual Studio Code |
Mapping Software:
| ArcGIS | MapInfo Pro | QGIS |
Productivity Suite:
| Adobe Acrobat Reader | CutePDF | Microsoft Office Suite: Excel, OneNote, PowerPoint, Word | OpenOffice | WinSCP | 7-Zip |
Statistical Software:
| Equity3 | EViews | Hiview3 | MATLAB | Power BI | SAS Enterprise Guide | SPSS | Stata | Stat/Transfer | Vensim DSS | X-13ARIMA | @RISK Industrial | @RISK Professional |
Scripting Languages:
| Bash | gedit | Git | Java | JavaScript | PHP | PowerShell | Python | R |
Version Control Software:
| GitLab |

4

SHARING YOUR ANALYSIS

If you need to share the results of your analysis with colleagues outside of CBAS, you can move files comfortably out of the environment (either using the file transfer facility or Egress) and then circulate as needed.

Alternatively, you can write your own custom web applications, publish them on the CBAS website, and then share that link with your audience. CBAS already hosts over thirty user-written web apps – they can be viewed by colleagues in CBAS-connected organisations, whether CBAS Secure users or not.

We can also help password-protect your app using the CBAS Light solution. A CBAS Light account is simply a username and password allowing anyone (who does not already hold a CBAS Secure account) to access a web app written and hosted in CBAS.

CBAS CLOUD-BASED ANALYTICAL SYSTEM

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